

THE REPUBLIC OF UGANDA
IN THE HIGH COURT OF UGANDA AT JINJA
CIVIL SUIT No. _____ OF 2025

(Arising From Probate & Administration Cause No. 20 of 2023)

ZAABU KWEZI :..... PLAINTIFF

VERSUS

1. SAMUEL MULIMBA

2. JOHN MUTAMBUZE

3. COMMISSIONER LAND REGISTRATION:..... DEFENDANTS

PLAINT

1. The Plaintiff female adult Ugandan of sound mind whose address of service for purposes of this suit shall be *C/o M/s _____ & Company Advocates, 3rd Floor Annex, Impala House, 13/15 Kimathi Avenue, P.O. Box 31338, Kampala.*
2. The 1st and 2nd Defendants are male adult Ugandans presumed to be of sound mind and the Plaintiffs' advocates undertake to effect service of court process upon them.
3. The 3rd Defendant is mandated by statute to perform functions pertaining to land registration and the Plaintiff's advocates undertake to effect service of court process upon her.
4. The Plaintiff's claim against the Defendants jointly and severally is for: -
 - a) An Order for revocation of Letters of Administration granted to the 1st Defendant in respect of the estate of the late Joel Kwezi vide Probate & Administration Cause No. 20 of 2023.
 - b) An Order compelling the Defendant to surrender to this Honourable Court the above-mentioned Letters of Administration.
 - c) A declaration that all sales, transfers and transactions done in the name of the estate by the defendant or on behalf of the estate are null and void.
 - d) An order for the Registrar of Titles to cancel the names of the defendant from the certificates of title and land registered entries in his capacity as administrator of the estate of the late Joel Kwezi vide Probate & Administration Cause No. 20 of 2023.
 - e) An order for comprehensive and true statement of account of all dealings with the estate of the late Joel Kwezi.

- f) A grant for Letters of administration of the estate of the late Joel Kwezi be issued to the Plaintiff.
- g) A permanent injunction restraining the Defendant from undertaking any further dealings with the estate of the late Joel Kwezi.
- h) General damages
- i) Costs of this suit and interest thereof from the date of judgement till payment in full.

5. The facts constituting the Plaintiff's cause of action against the Defendants arose as hereunder: -

- a) That the Plaintiff is a widow and beneficiary in the estate of the late Joel Kwezi. ***(A copy of the marriage certificate is attached herewith and marked "A")***
- b) The deceased Joel Kwezi died testate on 12th January, 2020 and is survived by three children to wit a) Martha Kirabo, Happy Fortunate and Christian Peregrine Junior aged 18, 15 and 13 respectively. ***(Copies of the death certificate and the last will and testament are attached hereto and marked annexure "B" & "C" respectively)***
- c) At the time of his death Joel Kwezi left behind the following properties;
 - i. A modern residence at Lubowa, Entebbe Road
 - ii. A modern home at Wankoko, Jinja District
 - iii. land comprised in Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District
 - iv. land comprised in Busiro Block 336 Plot 324 land at Nkumba, Entebbe Road, Wakiso District
- d) That until his death in January, 2020 the late Joel Kwezi was at all material times the registered proprietor of all the above properties and the certificates of title are the Plaintiff's possession. ***(Copies of the certificates of title are herewith attached and marked annexure "D" & "E" respectively)***
- a) The 1st Defendant applied for and was granted Letters of Administration by the High Court vide Probate & Administration Cause No. 20 of 2023. ***(A copy of the Letters of Administration is hereto attached and marked annexure "F")***
- e) The 1st Defendant made false and untrue allegations and concealed important information from the Court in his application for the Letters of Administration thus misleading this Honourable Court.
- f) That on 25th March, 2025 the 1st Defendant fraudulently procured a special certificates of title for land Busiro Block 336 Plot 324 land at Nkumba, Entebbe Road, Wakiso District and Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in

Wakiso District (*Copies of the certificates of title are hereto attached and marked "H" & "I" respectively*)

- g) That the Plaintiff conducted a search at the land registry and discovered that that the 1st defendant had fraudulently transferred land comprised in Busiro Block 336 Plot 445 land at Lyamutwe, Busiro in Wakiso District to the 2nd defendant. (*A copy of the search report is hereto attached and marked "J"*)
 - h) Since 2020, when the said letters of administration were granted, the 1st Defendant has failed or deliberately refused to exhibit an inventory/ or statement of accounts in this Honourable Court.
6. The Plaintiff shall aver and contend that the Defendant's acquisition of the letters of administration was illegal and fraudulent.

PARTICULARS OF FRAUD

- a) Stating that the Applicant was the only child and beneficiary of the deceased whereas not.
 - b) Basing on the on minutes of a family meeting that was never held.
7. The Plaintiffs shall aver and contend that the 1st Defendant's transfer of the suit land to the 2nd defendant was illegal and fraudulent.

PARTICULARS OF FRAUD

- a) The 1st defendant's forgery of a certificate of title
 - b) The 1st defendant procuring his registration as administrator of estate of the late Marko Kizza Musoke, whereas not.
 - c) The 2nd defendant's failure to conduct the necessary due diligence before purported purchase of the suit.
 - d) The 2nd defendant's purchase of the suit land which was in possession of the Plaintiffs.
 - e) Failure to inquire from the neighbours who the owners of the suit land were.
8. The Plaintiffs shall aver and contend that as a result of the defendants' actions, they have suffered great inconvenience for which the Plaintiffs seek general damages.
9. A notice of intention to sue was duly communicated to the Defendants and the same was ignored.

10. The cause of action arose within the jurisdiction of this Honorable Court.

REASONS WHEREFORE the Plaintiffs pray for judgment against the Defendants for;

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- h) General damages
- i) Costs of this suit and interest thereof from the date of judgement till payment in full.

DATED at **KAMPALA** this _____ day of _____ 2025.

& COMPANY ADVOCATES
COUNSEL FOR THE PLAINTIFF

DRAWN AND FILED BY:

